

24STCV33766 24STCV33766

County: los-angeles

Division: Civil Law and Motion

Department: 617

Hearing date: 2026-06-30

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Case Number: 24STCV33766 Hearing Date: June 30, 2026 Dept: 617

Dept.

617

Date:

6-30-26

Case

#: 24STCV33766

Trial

Date: None Set

LEAVE TO FILE CROSS-COMPLAINT

MOVING

PARTY: Defendants, Peter Roald Dion-Kindem and Gabrielle Dion-Kindem

RESPONDING

PARTY: Unopposed/Plaintiff, Claudia Bretado

RELIEF

REQUESTED

Leave

to File Cross-Complaint

SUMMARY

OF ACTION

Plaintiff

Claudia Bretado sued Defendants Peter Roald Dion-Kindem and Gabrielle Dion-Kindem for negligence after a car accident between the parties. On December 12, 2025, Plaintiff requested dismissal of the entire action, which was entered on the same day. The dismissal was vacated on April 6, 2026.

RULING: Off Calendar

Defendants

move for leave to file a cross-complaint in indemnity against Oscar Alejandro Leon Cerada. The basis for the amendment is the revelation through discovery that Plaintiff was involved in an accident with Cerada two days after the accident at issue, she settled her claims against Cerada, and the alleged injuries and damages from that accident overlap with those claimed here. Because Defendants already filed their cross-complaint on December 22, 2025 before trial was set, they need not seek leave. (Code Civ. Proc., § 428.50, subd. (b).) The instant motion is therefore taken off calendar.

This order in no way precludes Cerada from seeking to strike the cross-complaint if it is shown that the settlement between Plaintiff and Cerada was a “good faith” settlement. (Code Civ. Proc., § 877.6, subd. (c).)

Defendants to give notice.